

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 07/21/26 TIME: 1:30 P.M. DEPT: A CASE NO: CV0009543

PRESIDING: HON. STEPHEN P. FRECCERO

REPORTER:

CLERK:

PLAINTIFF: BUCKELEW PROGRAMS	
vs.	
DEFENDANT: INCHA SMITH	

NATURE OF PROCEEDINGS: MOTION – SET ASIDE/VACATE

RULING

On June 30, 2026 the Defendant, through his Guardian ad Litem (“GAL”), filed a notice of appeal of the judgment in this case. Under Code of Civil Procedure section 916, the trial court is divested of subject matter jurisdiction over any matter “embraced in or affected by” the appeal during the pendency of that appeal. (*Varian Medical Systems, Inc. v. Delfino* (2005) 35 Cal.4th 180, 196-197.) Thus, the Court lacks jurisdiction to hear the motion to vacate judgment and it is ordered **off-calendar**.

All parties must comply with Marin County Superior Court Local Rules, Rule 2.10(B) to contest the tentative decision. Parties who request oral argument are required to appear in person or remotely by ZOOM. Regardless of whether a party requests oral argument in accordance with Rule 2.10(B), the prevailing party shall prepare an order consistent with the announced ruling as required by Marin County Superior Court Local Rules, Rule 2.11.

The Zoom appearance information for July, 2026 is as follows:

<https://marin-courts-ca-gov.zoomgov.com/j/1605267272?pwd=908CbP6TV2mhCAyai1nzo6lyz2dKaw.1>

Meeting ID: 160 526 7272

Passcode: 026935

If you are unable to join by video, you may join by telephone by calling (669) 254-5252 and using the above-provided passcode. Zoom appearance information may also be found on the Court’s website: <https://www.marin.courts.ca.gov>

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 07/21/26 TIME: 1:30 P.M. DEPT: A CASE NO: CV0009963

PRESIDING: HON. STEPHEN P. FRECCERO

REPORTER:

CLERK:

PETITIONER: VIOLETA ANSARI ET
AL.

vs.

RESPONDENT: MERCEDES-BENZ USA,
LLC, A DELAWARE LIMITED LIABILITY
COMPANY ET AL.

NATURE OF PROCEEDINGS: MOTION – COMPEL ARBITRATION

RULING

Defendant Mercedes-Benz USA, LLC’s motion to compel arbitration is **GRANTED**.
This action is stayed pending resolution of the arbitration.

Procedural Background

On April 30, 2026, Plaintiffs Violeta Ansari and Marinq LLC filed their Complaint against Defendant Mercedes-Benz USA, LLC (“MB”) and Swickard Marin Corporation dba Mercedes Benz of Marin (“MB Marin”), alleging that on February 16, 2024, they leased a new 2023 Mercedes-Benz EQE350X4 from Mercedes Benz of Walnut Creek (“MB Walnut Creek”) and that they received certain warranties. Plaintiffs further allege that they brought the vehicle into MB’s authorized repair facility, MB Marin, for repair on five occasions but the vehicle continues to suffer from defects. Plaintiffs assert causes of action against MB for breach of express warranty, breach of implied warranty, and violation of Civil Code Section 1793.2 under the Song-Beverly Act, and against MB Marin for negligent repair.

The Arbitration Agreement

MB’s counsel attaches a copy of a Motor Vehicle Lease Agreement (the “Agreement”) as Exhibit 2 to his declaration. The parties to the Agreement are Plaintiffs and MB Walnut Creek. Pages 4-5 contain a section titled “Important Arbitration Disclosures”, which provides: